



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 5, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202133 (Incident Date: March 7, 2022) regarding Police Officer Joseph Sheridan, Tax No. 968802 (DADS No. 2023-28603), Police Officer Jennifer Ramirez, Tax No. 970115 (DADS No. 2023-28602), Police Officer Donte Perez, Tax No. 970073 (DADS No. 2023-28601), and Police Officer Avery Jennings, Tax No. 944092 (DADS No. 2023-28599)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Sheridan, Police Officer Ramirez, and Police Officer Perez, do not warrant a command discipline, but instead call for training. In addition, the Police Commissioner has determined that Police Officer Jennings will receive no disciplinary action, as he committed no misconduct in this case.

The officers were assigned to a call for help that was placed by a female tenant who stated she was unlawfully evicted. The female caller stated she rented a bedroom inside the apartment and the apartment's landlord changed the locks, preventing the female caller from reaching her bedroom. After a locksmith was able to open the door, Officers Sheridan, Perez, and Ramirez entered the premises. Police Officer Sheridan knocked on the landlord's bedroom, which opened revealing him inside. Police Officer Sheridan, Perez, and Ramirez entered the landlord's bedroom and he was eventually placed under arrest.

Such entry was in furtherance of public safety and to prevent any possible violence at the location. The officers were aware there was an open complaint report at the time for unlawful

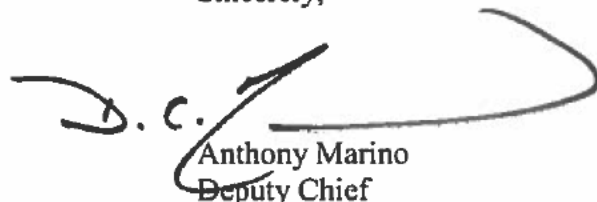
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eviction. The officers' actions were in good faith, and the Police Commissioner believes these officers will benefit from training rather than a command discipline.

After the landlord was placed under arrest, Police Officer Jennings entered the landlord's closet in order to retrieve a jacket for the landlord. Police Officer Jennings wanted to ensure the landlord remained warm while being transported to the precinct. The landlord was wearing shorts and a short sleeve shirt in early March. Police Officer Jennings was clearly not conducting a search for evidence or contraband. He was simply acting in compliance with common sense and demonstrating courtesy and professionalism to ensure a person in the Police Department's custody was properly cared for.

Sincerely,

A handwritten signature in black ink, appearing to read 'D. C. Marino', with a large, sweeping flourish extending to the right.

Anthony Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office